

*misprisiones in recordo et process' ejusd' placiti proinde subsequen' emendentur, et fiat (militi) secundum instructiones in script' prius deliberat' præf' Cursistar', viz. præd' breve originale per præfat' Cursistar' et recordum, et process' præd' per Philizar' hujus Curie.*

The next word in the Act of (a) 8 H. 6. is (record) and the first part of the record is the count; and briefly a count which wants substance shall not be amended in another term (F) as appears (b) 7 H. 6. 26 a. (c) 35 H. 6. 37 b. (d) 38 H. 6. 1 a. (e) 7 Ed. 4. 26 b. 9 Ed. 4. 5. (f) 33 H. 6. 2 a. *Vide* 38 H. 6. 2. 33. and 30 H. 8. Br. Amendment 80. for the King's case.

But it is enacted by the statute of (a) 36 E. cap. 15. that by the ancient forms and terms of pleadings no man be prejudiced, so that the matter of the action be fully shewed in the declaration and in the writ. *Vide Eveleigh's case*, 13 Eliz. Dyer 299. by the statute of 36 E. 3. c. 15. the declaration having substance shall (b) not abate for form. *Vide* 28 H. 6. 8 a. In a writ brought by John Gargrave against Thomas Beamond on a bond, and the bond was, *Noverint, &c. me Thomas Beamond teneri, &c.* Joseph Gargrave (without addition) and the writ was, *præcipe, &c. quod reddat Joseph Gargrave (c) armig' with addition*; and it was moved, that it might be amended by the stat. for it is the misprision of the clerk: but it was adjudged, that the writ should abate for this variance and should not be amended, as it should if it was on the defendant's part; for where the surplusage is on the plaintiff's part, as well in the writ, as in the count, a man cannot mend his own count. And this judgment was after the said stat. of (d) 8 H. 6. which proves that the said first clause of this very Act, which speaks of addition or diminution, &c. extends only to corruption, and misdemeanor in addition or diminution, and in vitiating of a record, and not where it is done in *rei veritate*, although it be by misprision. *Vide* 4 E. 4. 14 b. (e) A space in the declaration for the place where the obligation was made was not amendable in another term. And this which has been said of the count shall suffice. Other parts of the record are, plea in bar, replication, &c. and regularly matter of substance in them, and especially matters of fact shall not be amended in another term, as omission of averment, *et hoc parat' est verificare, &c.* † for in some cases, as in avowry, &c. it is not of necessity, but colour which is of course, and in which there is a misprision of the clerk, shall be amended.

[161 b] And the record in another term may be amended by the (f) paper book of the office, for it was the misprision of the clerk in the entering of it, and no fault in the party or his counsel, (g) 27 H. 6. 6. b. (h) 10 H. 7. 23 a. b. 25. a. 11 H. 7. 2 a. b.

(a) 8 H. 6. c. 12.

(F) It is now settled that whilst the pleadings are in paper, and before they are entered on record, the Court or a Judge will amend the declaration, plea, replication, &c. in form or in substance, on proper and equitable terms. *Tidd's Practice*, Vol. II. 753, 8th ed.

(b) Fitz. Count 12. Br. Amendment 30.

(c) Br. Amendment 15. Br. Count 22. Br. Faits 5. Fitz. Forger de Faux Faits 14.

(d) Br. Count 504.

(e) Br. Count 92.

(f) Br. Amendment 8.

(a) 10 Co. 132 b. Cr. Eliz. 85. 2 Bulstr. 214. Dyer 299. pl. 32. Co. Lit. 304 b.

(b) Plowd. 83 b. 2 Bulstr. 214. Dyer 299. pl. 32.

(c) Fitz. Amendment 37. Br. Amendment 93. Fitz. Brief 109. Br. Brief 28. Br. Nugaton, &c. 23.

(d) 8 H. 6. cap. 12.

(e) Fitz. Amendment 49. Br. Amendment 68. Br. Brief 478. Br. Count. 64. 1 Roll. 208. 20 H. 6. 18 a. Br. Amend. 5. Fitz. Amendment 28.

† *Vide* stat. 4. & 5 Annæ, c. 16.

(f) Cr. Eliz. 258. Salk. 50, 51.

(g) Fitz. Amendment 35. Br. Amend. 6. Br. Brief 519. *Antea* 159 b.

(h) Br. Amendment 112.